

Appeal Decisions

Site visit made on 30 July 2026

by **Andrew McGlone BSc MCD MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 26 August 2026

Appeal A Ref: 6008051

Pavement outside, 30 New Bailey Street, Salford, M3 5FS

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Nathan Still of In Focus Public Networks Limited against the decision of Salford City Council.
 - The application Ref is PA/2026/0124.
 - The development proposed is the installation of 1no. freestanding telephone apparatus with affixed defibrillator.
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Appeal B Ref: 6008052

Pavement outside, 30 New Bailey Street, Salford, M3 5FS

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Nathan Still of In Focus Public Networks Limited against the decision of Salford City Council.
 - The application Ref is PA/2026/0171.
 - The development proposed is the display of 1no. freestanding internally illuminated six sheet advertising unit.
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Decisions

1. Appeals A and B are dismissed.

Main Issues

2. The main issue in Appeal A is whether the proposed development would preserve or enhance the Grade II Listed Albert Bridge and Grade II* Listed Southern Railway Viaduct and Colonnade. The main issue in Appeal B is the effect of the proposed advert on amenity, having regard to the Grade II Listed Albert Bridge and Grade II* Listed Southern Railway Viaduct and Colonnade.

Reasons

3. The appeal site lies within the footway near to the junction of New Bailey Street and Stanley Street. Here, the footway is around 8 metres wide, though that includes a landscaping strip with street trees, a cycle rack and street lighting columns. This corner of the junction is currently used as a dedicated scooter storage location. A tall, modern building lies adjacent, while there are further large, multi-storey buildings on the eastern side of the road and to the south of the River Irwell. That said, the street corridor has a sense of openness due to the wide footways on either side and the curvature of the road by Albert Bridge. Commercial uses characterise the area, and adverts are associated with those premises.

Albert Bridge

4. The Grade II listed Albert Bridge (List Entry Number: 1293278) is to the southeast of the appeal site beyond Stanley Street and the footpath along the northern bank of the River Irwell to the east. The bridge was named after the then queen's consort and dates from 1844 as a crossing point over the River Irwell. The bridge's significance stems from its architectural and historic interest. It has a classical style with a single-span segmental-arched bridge with voussoirs, pilaster terminals and a moulded stringcourse set below the parapet wall. To the centre of each parapet is a raised panel with cast-iron lamps on top. The bridge is built from sandstone ashlar, but on its northeast side a red brick retaining wall has been unsympathetically stitched to the sandstone ashlar.
5. That said, the interpretation board on the bridge reveals that Albert Bridge replaced the original tolled (up to 1806) New Bailey Bridge. During the mid-18th century trading in Salford and Manchester grew rapidly and wharves and warehouses were built along the river banks between Blackfriars Bridge and New Bailey Bridge by trading companies that transported raw materials and goods.
6. The appeal site lies within the setting of Albert Bridge, as it lies on one of the approaches to the bridge where its significance can be experienced. This does vary between road and the river, but the straightforward design of the bridge and the road approaches to it positively contribute to the significance of a crossing point over the river and its association with nearby wharves and warehouses and the use of the river to transport goods notwithstanding recent development. Similarly, from the canal towpath to the south (west side of Bridge Street) and the canal towpath from the north (east side of Bridge Street), the bridge's simple design and architecture can be experienced in conjunction with the modern development next to the river, and the road approaches to the bridge.

Southern Railway Viaduct and Colonnade

7. The Grade II* Southern Railway Viaduct and Colonnade (List Entry Number: 1386162) is to the northwest of the appeal site. New Bailey Street passes underneath the operational elevated railway viaduct. The railway viaduct was created by Sir John Hawkshaw, the engineer for the Liverpool and Manchester Railway, in 1844. Massive cast-iron columns support I-section girders and a cast-iron parapet. They have Egyptian lotus flower capitals. The parapet is plain for most of the colonnade but is enriched for the section forming the bridge over New Bailey Street. It is divided by fluted pilasters with acanthus capitals and frieze.
8. The viaduct and colonnade hold architectural and historic significance on a national and international level as it forms part of the first inter-city railway in the world connecting the Port of Liverpool and East Lancashire transporting goods and passengers. Owing to the alignment of New Bailey Street and the elevated viaduct and colonnade, the appeal site lies within the setting of the listed building. The road approach to the railway viaduct and colonnade positively contributes to the asset's significance due to the historic layout and movement of the area and the reason for the viaduct and colonnade so that the railway could span New Bailey Street. This remains the case despite more recent development in the area due to the alignment of New Bailey Street.

Appeal A

9. The scale, design, siting and modern utilitarian form of the hub would mean that it would be a prominent addition in the street scene, especially given its location close to the corner of New Bailey Street and Stanley Street. Although the hub would be sited to align with other street furniture and landscaping as part of recent public realm improvements, it would adversely increase the amount of street clutter within a busy pedestrian route where dropped kerbs are present around the radii to encourage ease of movement across the roads.
10. Further, the proposed hub would be a standalone feature within the footway. It would jar with the openness of the street and, it would visually compete within the setting of each asset and harmfully contrast with their simple historic design (architectural and historic significance). The proposed hub would also interrupt views of each asset, and the legibility of their significance. Notably, the significance of Albert Bridge is not solely experienced from the canal towpath, albeit the proposal's harmful visual effect would also be experienced from the towpath to the south west, albeit it would remain as a busy crossing point used by different transport modes.
11. But, unlike the hub and advert (same as proposed here) which the Council granted permission on the opposite side of the road closer to the railway viaduct and colonnade, the proposal would be situated in a part of the street scene which has a more open character because of the road's curvature. The advert close to the station is also viewed with your back to the railway viaduct and colonnade, and while Albert Bridge lies in the backdrop, street trees and parked vehicles lie between when people experience this view.
12. The removal of the existing kiosk on the eastern side of New Bailey Street would mean that the hub would not increase the number of hubs/kiosks locally, but this would not overcome or mitigate for the proposal's harmful effect due to the differences between the east and western sides of New Bailey Street.
13. The proposed hub would not therefore be a sympathetic addition to the character of the area, and it would detract from the significance of both heritage assets through harm to their setting. As such, the proposal would not preserve or enhance their setting and the special architectural and historic interest that the Southern Railway Viaduct and Colonnade and Albert Bridge hold.
14. The proposal would cause harm to the significance of both listed buildings, by way of impact upon setting at the lower end of the spectrum in each case. That said, I give substantial weight to each asset's conservation, and any harm to the significance of a designated heritage asset (including from development within its setting) should have a clear and convincing justification according to Policy HE4 of the National Planning Policy Framework (the Framework).
15. The proposed modern unit would replace an existing kiosk and would provide free public Wi-Fi, UK calls, USB charging, defibrillator, charging capability, an emergency services button and other digital services. The ability to make free UK calls would enable people to contact charity phone lines, while the advert would help fund the free public services. In the context of the local and national objective to deliver high quality digital infrastructure and economic growth, these are all public benefits, and the proposal would, in this regard accord with Policies JP-C1 and JP-C2 of Places for Everyone (PfE). Framework Policy CO1 says that such benefits carry substantial weight, but equally this policy says that the proposed hub would not be sited or designed to minimise its visual impact, especially given that it

would be a new structure. I conclude that they do not outweigh the collective or individual harm that I have identified to the Grade II* and Grade II listed buildings having regard to Framework Policy HE6.

16. I conclude in respect of Appeal A that the proposal would not preserve or enhance the Grade II* and Grade II listed buildings of Southern Railway Viaduct and Colonnade and Albert Bridge. Therefore, the proposal would not comply with Policies AP1, DG1, D1, D2, D3, D4, HE1 and HE2 of the Salford Local Plan: Development Management Policies and Designations (Local Plan) as well as PfE Policy JP-P1 and Policy SC4 of the Salford Central Planning Guidance. Jointly, these policies seek, among other things, seek high quality design to minimise its impact and to protect, enhance and respond to any positive character and distinctiveness of the local area, to enable a clear understanding of how the place has developed, and to protect and enhance important heritage assets and their setting. Furthermore, the proposal would not accord with section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) and Framework Policy HE6.

Appeal B

17. The proposed advert is designed to attract people's attention, nevertheless it would be located where it could be viewed on Bridge Street West and the initial part of New Bailey Street as well as the footpaths next to the canal to the south and north. The advert would therefore be viewed in conjunction with Albert Bridge in all those views and the Southern Railway Viaduct and Colonnade from Bridge Street West and New Bailey Street.
18. Although an existing hub, kiosk and phone box (and advertisements attached to them) are on the opposite side of New Bailey Street, these are next to a series of street trees and in front of a row of ground floor commercial premises that have associated advertising, which are generally not illuminated. Further, only the existing hub has an illuminated advert.
19. The western side of New Bailey Street is largely absent of adverts despite the modern development which now populates the street and the wider locality. Furthermore, the alignment of street furniture and street trees, coupled with the bend in the road by Albert Bridge would mean that the location, size and the digital nature of the display would introduce a greater level of visual activity that would compete with the amenity of the area and the setting, and thus the significance of the two listed buildings. The visual clutter of the proposal would detract from those settings and the contribution they make to each asset's significance. Removing the advert associated with the existing kiosk would not change that given that it is not illuminated and in a less prominent position.
20. Planning conditions could control the level of illumination, the length and content of each display and the interval between displays, and while these measures would reduce the proposal's harmful effect, they would not overcome it.
21. I conclude that the proposed advert would harm the amenity of the area, having regard to the Grade II Listed Albert Bridge and Grade II* Listed Southern Railway Viaduct and Colonnade. The Council has referred to Local Plan Policies AP1, D1, D2, D4, HE1 and HE2, which jointly seek, among other things, to protect, enhance and respond to any positive character and distinctiveness of the local area, and to protect and enhance important heritage assets and their setting by avoiding clutter. They are material in this case, and I find conflict with them.

22. I do not find Local Plan Policy DG1 to be directly relevant to Appeal B, as it is concerned with the equipment itself rather than the advertisement. Further, Local Plan Policy D3 is not directly relevant, as it is concerned with the layout of spaces and buildings rather than advertisements.

Conclusions

23. The proposal subject of Appeal A conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it.
24. The proposed advert subject of Appeal B would not be detrimental to public safety; this is outweighed by my conclusion that they would be harmful to amenity.
25. For the reasons given above, I conclude that Appeals A and B should be dismissed.

Andrew McGlone

INSPECTOR